

Plaintiffs argue in opposition that the parties are not the same; however, as noted by Defendants in their moving papers, while Aspen is not a named defendant in the Johnson and Patton actions, Aspen is one of several subsidiaries of Surgery Partners, Inc., which is a named defendant in both Johnson and Patton. (Trautvetter Decl., ¶¶6, 12.) Furthermore, the putative class Plaintiffs seek to represent are the same in each of the related actions—they cover the same time period, claims, and group of employees. (See, e.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 363 fn. 8 [“where the prospective class is the same, the identity of the named plaintiffs does not affect the question whether a FEHA class action in state court is, or is not, barred by section 12965(b).”].)

Plaintiffs’ remaining arguments are largely directed at the substantive benefits of coordination but do not squarely address the issue of exclusive concurrent jurisdiction.

Because the Court finds that the conditions for application of concurrent exclusive jurisdiction exist here, an order staying this action is mandatory. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 787 [“An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist.”].)

Conclusion

The motion is **granted** and this proceeding is stayed until one of the following occurs:

- d. The *Johnson* and *Patton* actions are finally resolved by judgment, settlement, or otherwise;
- e. The coordination motion judge, or if Plaintiffs’ petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in part; or
- f. The Court enters a further order upon the noticed motion of either side.

22. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: PRIYAM MADHUKAR

FILED BY: SYNGENTA AG

TENTATIVE RULING:

Summary

Defendants Syngenta AG and Syngenta Crop Protection, LLC’s (“Defendants or Syngenta”), Motion for an order permitting Priyam Madhukar of the law firm Kirkland & Ellis LLP (US) to appear as counsel Pro Hac Vice on its behalf in the above-entitled action is **granted**. No appearance is required at the hearing on March 25, 2026.

The Court also sets-aside any order re-assigning this case to Hon. Julia Campins, Department 10, for all purposes. Any such order is entered by mistake. This case remains in Department 16.

Background

On October 7, 2025, Defendant filed Notice of Hearing on Verified Application of Gregory Rousso, and Verified Application of Priyam Madhukar, Esq. This motion is not opposed.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Priyam Madhukar Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. The Court is satisfied that all requirements to appear as counsel pro hac vice in this matter appears to be met. Ms. Madhukar is not a resident of the state of California, nor is she a member of the California bar. (Rousso Decl. ¶ 4.) Ms. Madhukar, however, is a member in good standing and admitted to practice in the courts of Illinois in November 2024. Ms. Madhukar has never been suspended or disbarred from practice in any court. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Priyam Madhukar, Esq. is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order granting lodged with the Court on October 17, 2025. No appearance is required at the March 25, 2026 hearing.

The Court also sets-aside any order re-assigning this case to Hon. Julia Campins, Department 10, for all purposes. Any such order is entered by mistake. This case remains in Department 16. The Clerk of the Court is ordered to enter and served a minute order to all counsel by e-mail.

23. 9:00 AM CASE NUMBER: N25-2112

CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF

***HEARING ON MOTION IN RE: REQUESTING THE ABOVE ENTITLED CASE UNDER COMPLAINT FOR EVICTION SET UP FOR COURT HEARING**

FILED BY: POHYAR, AMAN

TENTATIVE RULING:

See Tentative Ruling, Line No. 7, above.